by-cop. As a result, the officers did not violate the Fourth Amendment when they entered Case's home.[8]

That conclusion, on the facts of this case, does not mean it will always be objectively reasonable for officers responding to a mental-health crisis to make a warrantless entry. A different mix of information might have led to the conclusion that the officers' entry itself would put the occupant (and officers) at a greater risk of escalation and serious injury. Because the "objectively reasonable basis" test, as reaffirmed by the Court today, demands careful attention to the case-specific risks that attend mental-health crises, and requires officers to act reasonably in response, I join the Court's opinion in full.

JUSTICE GORSUCH, concurring.

Today's case, like another before it, holds that police officers generally do not violate a person's Fourth Amendment rights when they enter his house without a warrant, but with an "'objectively reasonable basis'" for believing someone inside is in physical danger and in need of immediate aid. *Ante*, at 116 (quoting *Brigham City* v. *Stuart*, 547 U. S. 398, 400 (2006)). Importantly, the Court observes, this exception to the warrant requirement permits entry only to the extent reasonably necessary to address the apparent emergency and does not authorize officers to search a home more broadly. See *ante*, at 117. With all that, I agree.

Page Proof Pending Publication

But to me, a question lingers: Why? Does the Fourth Amendment tolerate this limited emergency aid exception to the warrant requirement just because five or more Justices of this Court happen to believe that such entries are "reasonable"? Or is this exception more directly "tied to the law"? *Carpenter* v. *United States*, 585 U. S. 296, 397

[8] Case has not challenged the reasonableness of the officers' manner of entry or their conduct inside his house after entry. As a result, neither the decision below nor this Court had occasion to consider the reasonableness of that conduct.

(2018) (GORSUCH, J., dissenting). The answer, I believe, is the latter.

From before the founding through the present day, the common law has generally permitted a private citizen to enter another's house and property in order to avert serious physical harm. In those circumstances, and many others, courts have historically held that property rights give way to concern for human safety. See, *e. g.*, 37 Hen. 6, pl. 26; *Mouse's Case*, 12 Co. Rep. 63, 77 Eng. Rep. 1341 (K. B. 1608); *Respublica* v. *Sparhawk*, 1 Dall. 357, 363 (Pa. 1788); *Ploof* v. *Putnam*, 81 Vt. 471, 474–475, 71 A. 188, 189 (1908). Courts have long described property-law necessity defenses like these as turning, too, on the adequacy of the defendant's judgment, not a *post-hoc* assessment of necessity in fact. See, *e. g.*, *Mitchell* v. *Harmony*, 13 How. 115, 134–135 (1852); *Stone* v. *Mayor of City of New York*, 25 Wend. 157, 176 (N. Y. 1840) (opinion of Verplanck, Sen.); *Surocco* v. *Geary*, 3 Cal. 69, 72 (1853).*

Page Proof Pending Publication

The common-law emergency rule is now often summarized this way: "One is privileged to enter or remain on land in the possession of another if it is or reasonably appears to be necessary to prevent serious harm to . . . the actor[,] . . . the other[,] or a third person . . . unless the actor knows or has reason to know that the one for whose benefit he enters is unwilling that he shall take such action." Restatement (Second) of Torts § 197(1) (1963–1964). But, of course, this

*Contrary to Mr. Case's argument, *King* v. *Coate*, Lofft. 73, 98 Eng. Rep. 539 (K. B. 1772), does not establish that the common law demanded an exacting showing of actual necessity to defeat a claim for trespass. True, Lord Mansfield explained that any necessity defense in that case would need to "stand the strictest test," with the "necessity manifestly proved." *Id.*, at 75, 98 Eng. Rep., at 540. But *Coate* involved an effort to involuntarily "confin[e] a person in a madhouse" for two months, not a claim over a home entry. *Id.*, at 74, 98 Eng. Rep., at 539. And it is hardly surprising that the common law would demand a good deal more to justify a serious deprivation of liberty than to excuse an invasion of property rights aimed at protecting human safety.

privilege comes with its logical limitations. So, for example, a private citizen who enters a home to render emergency aid lacks license to do so in a manner "which a reasonable man would not regard as necessary to" address the apparent emergency. *Id.*, § 214, and Comment *a*; see also *id.*, § 197, Comment *a*; *Des Moines* v. *Webster*, 861 N. W. 2d 878, 883–885 (Iowa App. 2014); *State* v. *Lukus*, 149 Mont. 45, 50–51, 423 P. 2d 49, 52–53 (1967).

Today's decision echoes both the common-law emergency aid rule and its limitations. It does so, to be sure, in the context of a law enforcement officer, not a private citizen, who sought to enter another's home. But on this point as well the common law has spoken, long providing that officers generally enjoy the same legal privileges as private citizens. See, *e. g.*, *Entick* v. *Carrington*, 19 How. St. Tr. 1029, 1066 (C. P. 1765); 1 J. Chitty, Criminal Law 36 (1819); 2 M. Hale, Historia Placitorum Coronae 91 (1736). And, reflecting the common law here again, this Court has held that the Fourth Amendment usually permits officers lacking a valid warrant to "take actions that any private citizen might do without fear of liability." *Caniglia* v. *Strom*, 593 U. S. 194, 198 (2021) (internal quotation marks omitted). But they normally may do "no more" than that. *Kentucky* v. *King*, 563 U. S. 452, 469 (2011); see also *Entick*, 19 How. St. Tr., at 1066.

Page Proof Pending Publication

It should come as no surprise that our decision today might accord with the accumulated learning of the common law—just as it should come as no surprise that our application of the Fourth Amendment ought to be informed by the common law's lessons rather than mere intuition. For a period, to be sure, the miasma created by this Court's *Katz* era led some to think the scope of the rights guaranteed by the Fourth Amendment depend on nothing more than current judicial instincts about "reasonable expectations of privacy." See *Carpenter*, 585 U. S., at 394–395, 405–406 (GORSUCH, J., dissenting). But that confusion cannot last forever, for no one should think the rights of Americans hang on so thin

a thread. Instead, and as Justice Story recognized, the Fourth Amendment is made of sturdier stuff, representing "the affirmance of a great constitutional doctrine of the common law." 3 Commentaries on the Constitution of the United States 748 (1833).

Page Proof Pending Publication

Reporter's Note

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. A list of counsel who argued or filed briefs in this case, and who were members of the bar of this Court at the time this case was argued, has been inserted following the syllabus. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

Page Proof Pending Publication

p. 123, line 12: "(McKinnon, J., dissenting)" is inserted after "(2024)"